

Order on Request to Continue Court Hearing

Clerk stamps date here when form is filed.

(Complete ① and ② only. The court will complete the rest of this form.)

① **Protected Party:** _____

② **Restrained Party:** _____

③ Next Court Date

a. ☐ The request to reschedule the court date is **denied**.

Your court date is: _____

(1) Any *Temporary Restraining Order* (form DV-110) already granted stays in full force and effect until the next court date.

(2) Your court date is not rescheduled because: _____

b. ☐ The request to reschedule the court date is **granted**. The new court date is listed below. See ④–⑨ for more information.

**New
Court
Date**

→ Date: _____ Time: _____
Dept.: _____ Room: _____

Name and address of court, if different from above: _____

Fill in court name and street address:

Superior Court of California, County of

Fill in case number:

Case Number:

④ Option to Attend Court Hearing By Phone or Videoconference

You may attend your court date remotely, such as by phone or videoconference. For more information, go to the court's website for the county listed above. To find the court's website go to: www.courts.ca.gov/find-my-court.htm.

⑤ Temporary Restraining Order

a. ☐ There is no Temporary Restraining Order (TRO) in this case until the next court date because:

(1) ☐ A TRO was not previously granted by the court.

(2) ☐ The court terminates (cancels) the previously granted TRO because: _____

b. ☐ A Temporary Restraining Order (TRO) is in full force and effect because:

(1) ☐ The court extends the TRO previously granted on (date): _____

It now expires on (date): _____ (If no expiration date is listed, the TRO expires at the end of the court date listed in ③b).

(2) ☐ The court changes the TRO previously granted and signs a new TRO (form DV-110).

c. ☐ Other (specify): _____

Warning and Notice to the Restrained Party:

If ⑤b is checked, a domestic violence restraining order has been issued against you. You must follow the orders until they expire.

This is a Court Order.

6 Reason Court Date Is Rescheduleda. ☐ There is good cause to reschedule the court date (*check one*):(1) ☐ The protected party has not served the restrained party.(2) ☐ Other (*explain*):

_____b. ☐ This is the first time that the restrained party has asked for more time to prepare.c. ☐ The court reschedules the court date on its own motion.**7 Serving (Giving) Order to Other Party**

The request to reschedule was made by the:

a. ☐ **Protected party**(1) ☐ You do not have to serve the restrained party because they or their lawyer were at the court date or agreed to reschedule the court date.(2) ☐ You must have the restrained party personally served with a copy of this order and a copy of all documents listed on form [DV-109](#), item **6**, by (*date*): _____.(3) ☐ You must have the restrained party served with a copy of this order. This can be done by mail. You must serve by (*date*): _____.(4) ☐ The court gives you permission to serve the restrained party as listed on the attached form DV-117.(5) ☐ Other:

_____b. ☐ **Restrained party**(1) ☐ You do not have to serve the protected party because they or their lawyer were at the court date or agreed to reschedule the court date.(2) ☐ You must have the protected party personally served with a copy of this order by (*date*): _____.(3) ☐ You must have the protected party served with a copy of this order. This can be done by mail. You must serve by (*date*): _____.(4) ☐ Other:

_____c. ☐ **Court**(1) ☐ Further notice is not required.(2) ☐ The court will mail a copy of this order to all parties by (*date*): _____.(3) ☐ Other:

_____**This is a Court Order.**

8 No Fee to Serve

The sheriff or marshal will serve this order for **free**.

Bring a copy of all the papers that need to be served to the sheriff or marshal.

9 ☐ Other Orders

10 ☐ Attached pages (*All of the attached pages are part of this order.*)

a. Number of pages attached to this three-page form: _____

b. Attachments include forms (*check all that apply*):

☐ DV-110 ☐ DV-820 ☐ Other: _____

Judge's Signature

Date: _____

Judge or Judicial Officer

**Request for Accommodations**

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to www.courts.ca.gov/forms.htm for *Disability Accommodation Request* (*form MC-410*). (Civil Code section 54.8.)

Instructions to Clerk

If the hearing is rescheduled and the court extended, modified, or terminated a temporary restraining order, then the court must enter this order into CLETS or send this order to law enforcement to enter into CLETS. This must be done within one business day from the day the order is made.

—Clerk's Certificate—

Clerk's Certificate

[seal]

I certify that this *Order on Request to Continue Court Hearing (Temporary Restraining Order) (CLETS-TRO)* (form DV-116) is a true and correct copy of the original on file in the court.

Date: _____ Clerk, by: _____, Deputy

This is a Court Order.